

BEFORE THE STATE BOARD OF REGISTERED PSYCHOTHERAPISTS AND THE STATE BOARD
OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2019-6257

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE REGISTRATION TO
PRACTICE AS A REGISTERED PSYCHOTHERAPIST IN THE STATE OF COLORADO AND THE
REGISTRATION TO PRACTICE AS A PROFESSIONAL COUNSELOR CANDIDATE IN THE
STATE OF COLORADO OF RANDAL STUEVE, REGISTRATION NOS. NLC 10438 AND LPCC
16962,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Registered
Psychotherapists and the State Board of Licensed Professional Counselor Examiners
(together, "Boards") and Randal Stueve ("Respondent") as follows:

1. On or about October 3, 2017, Respondent applied for registration in the database to practice as a registered psychotherapist ("RP") in the State of Colorado ("RP Application"). Respondent received his RP on October 2, 2018. On or about July 18, 2019, Respondent applied for registration to practice as a professional counselor candidate ("LPCC") in the State of Colorado ("LPCC Application"). Respondent received his LPCC on August 9, 2019.
2. The Boards have jurisdiction over Respondent, his RP and LPCC registrations, and the subject matter of this Stipulation and Final Agency Order ("Order").
3. This Order is a full and final resolution of case number 2019-6257. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Boards or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or about October 3, 2017, Respondent applied for registration as a RP in the State of Colorado.
 - b. On his RP Application, Respondent answered "yes" to the question which states: "Have you ever received a deferred judgment or

been convicted of or pled *nolo contendere* to a violation of any federal, state, or local law relating to the possession, manufacture, distribution, or dispensing of a controlled substance, or relating to drug abuse, including alcohol (DUI/DWI/DWAI/OWI)?”

c. On or about July 18, 2019, Respondent applied for registration as a LPCC in the State of Colorado.

d. On his LPCC application, Respondent answered “yes” to the question which states: “Has any disciplinary action ever been taken regarding any Psychotherapy/drug and alcohol services certification/license or any other healthcare or behavioral health license which you now hold or have ever held, including any disciplinary actions by the U.S. military, U.S. Public Health Service, or other U.S. federal governmental entity?”

e. On his LPCC application, Respondent answered “yes” to the question which states: Have you ever received a deferred judgment or been convicted of or pled *nolo contendere* to a violation of any federal, state, or local law relating to the possession, manufacture, distribution, or dispensing of a controlled substance, or relating to drug abuse, including alcohol (DUI/DWI/DWAI/OWI)?”

f. On his LPCC application, Respondent answered “yes” to the question which states: “Do you now abuse or excessively use, or have you in the LAST 5 YEARS abused or excessively used, any habit forming drug, including alcohol, or any controlled substance that has: Resulted in any accusation or discipline for misconduct, unreliability, neglect of work, or failure to meet professional responsibilities or affected your ability to practice safely and competently?”

g. On or around October 14, 2003, Respondent pled guilty to Impaired Driving, a misdemeanor, in Case No. 031966SD1, in County Court, Crawford County, Michigan. He was sentenced to ninety days of probation.

h. On or around June 2018, Respondent submitted to an evaluation, and the evaluator concluded that Respondent should attend supportive programs to maintain sobriety and maintain a specific relapse prevention plan, including stress management.

i. On or around October 2, 2018, Respondent entered into and is currently under a Stipulation and Final Agency Order with the RP Board in case number 2017-6380 (“2018 Order”) that includes the terms as outlined below. This Order is a continuation of the 2018 Order and is

intended to also include Respondent's LPCC registration and case number 2019-6257.

j. Respondent has admitted to a history of substance abuse and a related conviction.

5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Boards find that Respondent violated section 12-245-224(1)(e), C.R.S., which state:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(e) Habitually or excessively uses or abuses alcohol, a habit-forming drug, or a controlled substance, as defined in section 18-18-102(5).

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Boards believe is necessary to protect the public health, safety, and welfare.

PROBATION

7. Respondent's RP and LPCC registrations shall be placed on probation for a minimum period of three (3) years commencing from the effective date of the 2018 Order, or the date Respondent was approved for his RP registration, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

8. The period of probation is tolled during any time that Respondent is not practicing in the State of Colorado, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

9. Respondent shall report to the Boards if he discontinues the practice of psychotherapy and/or professional counseling as a candidate or if Respondent is not practicing as a RP or LPCC at the time this Order is executed. Respondent shall notify the Boards in writing upon resuming the practice of psychotherapy and/or professional counseling as a candidate.

10. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a RP and LPCC in the State of Colorado and is in full compliance with all terms of this Order.

11. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation.

Request for termination of probation must be made in writing to the Boards, and Respondent is responsible for establishing, to the satisfaction of the Boards, that he has satisfied all terms and conditions of probation.

ABSTINENCE FROM ADDICTIVE SUBSTANCES

12. During the period of probation, Respondent shall abstain from the use of any habit-forming drug, any controlled substance, and/or any alcoholic beverage other than as administered, dispensed, or prescribed by an authorized person other than Respondent. Respondent shall use such habit-forming drug, controlled substance only as directed by such authorized person and only for the condition identified by such authorized person.

13. During the period of probation, Applicant shall maintain his current self-monitoring system, to include supportive programs and a relapse prevention plan.

TERMS AND CONDITIONS

14. Respondent will strictly observe the prohibitions set forth in section 12-245-224, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

15. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

16. All expenses incurred or associated with any requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Boards.

17. In the event Respondent relocates at any time at any time during the probationary period, Respondent shall notify the Boards of the change of address within 30 days of the effective date of such change.

18. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

19. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

20. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

21. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403 and 12-245-226, C.R.S.

22. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

23. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

24. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

25. This Order shall be admissible as evidence at any hearing held before the Boards.

26. This Order shall be a public record in the custody of the Boards.

ACCEPTED AND AGREED BY:

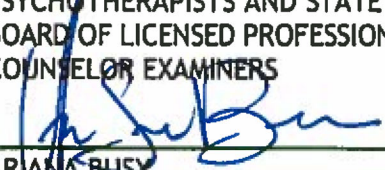
RESPONDENT



RANDAL STUEVE
NLC 10438
LPCC 16962

ACCEPTED AND ORDERED BY:

STATE BOARD OF REGISTERED
PSYCHOTHERAPISTS AND STATE
BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS



ARIANA BUSY
Program Director

Effective Date: This 5th day of
October, 2019.

CERTIFICATE OF SERVICE

This is to certify that I have duly served the within fully executed **STIPULATION AND FINAL AGENCY ORDER** upon all parties herein by depositing copies of same in the United States mail, first-class postage prepaid, at Denver, Colorado, this 15th day of October, 2019, addressed as follows:

Randal Stueve
114 Tierra Vista Drive
Durango, CO 81301

Email: randystueve@mac.com



Division Staff